

Evidence Relevance Memorandum

Rhodes and NoFap LLC v. Aylo Holdings et al.

Screening the evidence categories Stacey Kahns-Gray has described against the allegations and present litigation needs of the NoFap plaintiffs

Prepared July 14, 2026 | Case No. 2:25-cv-01956-MJH (W.D. Pa.)

Bottom line: Yes. Several evidence categories you have described could materially help NoFap, but only the portions that can be tied to a named defendant, a specific act or publication, a date, a money or traffic consequence, and a preserved source. Your broad structural model supplies motive and pattern; counsel will need the underlying proof objects.

Scope and source note

The uploaded PDF is a 94-page excerpt that ends at complaint paragraph 225/internal page 74. For completeness, this memorandum also reviewed the publicly available 208-page copy of the same First Amended Complaint filed December 30, 2025. It does not review your other uploaded files. It uses only: (1) the complaint, (2) the evidence categories you have described in conversation, and (3) the public docket and federal procedural rules for the limited procedural note below.

This is an evidence-screening memorandum, not a legal opinion, expert report, or court filing.

1. Structural Assessment

Your evidence model overlaps the complaint at five central points: market motive, knowledge, coordination, narrative production, and measurable suppression of a recovery competitor.

Structural node	Complaint allegation	Key references
Commercial motive	The complaint alleges that recovery activity threatened pornography traffic, advertising revenue, age-verification resistance, and future products. It cites Pornhub advertising aimed at people who “failed NoFap,” search-optimized Pornhub pages targeting “NoFap,” and xHamster’s claimed 14.5% “NoFap recession.”	FAC ¶¶ 82, 89-91, 127-130, 179-191.
Knowledge and contradiction	The complaint contrasts public denials of problematic pornography use with earlier company language about keeping “porno addiction alive,” Pornhub wellness content discussing sexual dysfunction and abstinence/recovery, and extensive audience measurement.	FAC ¶¶ 64-66, 82, 91.
Industry-academic coordination	The complaint alleges concealed collaboration among Aylo/Pornhub, Prause, Ley, Free Speech Coalition, media sources, and an academic publication, including referrals, metadata, common talking points, and alleged involvement by an Aylo employee in the Taylor & Francis dataset.	FAC ¶¶ 92-93, 123-134, 250-300.
Narrative conversion	The complaint alleges a recurring conversion of a secular peer-support population into “anti-masturbation,” religious, misogynist, extremist, violent, or terrorist-coded subjects, followed by media and academic republication.	FAC ¶¶ 25, 61-65, 172-191, 284-293, 347-380.
Business and access injury	The complaint alleges declining traffic, lost memberships and partnerships, reduced brand equity, moderation costs, delayed peer support, and lost product opportunities.	FAC ¶¶ 421-423, 447-469.

What your structure adds

- It treats NoFap users as an aggregate return signal from the product market, rather than as an isolated moral or ideological community.
- It identifies audience measurement, search diversion, traffic protection, age-verification resistance, and academic category control as parts of one commercial problem.
- It explains why attacking recovery testimony can preserve both product legitimacy and traffic: the recovery population supplies evidence of injury and a practical exit route.
- It distinguishes broad pornography debate from the narrower alleged conduct: targeting a named recovery organization, its trademark, its users, its business relationships, and its credibility.

2. Legal Relevance: Evidence You May Already Have

The most useful evidence is defendant-specific and transaction-specific. The following categories are ranked by likely utility, not by moral importance.

Priority	Evidence category	Best proof objects	Why it may matter	FAC refs.
HIGH	Direct Aylo/Pornhub use of NoFap as a marketing or traffic target	Preserved screenshots, page source, archived URLs, ad copies, SEO pages, “Failed NoFap” banners, “NoFap” category pages, referrals, or geographic targeting.	Supports commercial use of the mark, diversion, motive, unfair competition, trademark-related claims, and the link between recovery and revenue.	FAC ¶¶ 81, 89-91, 426-445.

Priority	Evidence category	Best proof objects	Why it may matter	FAC refs.
HIGH	Market-research or traffic records connecting abstinence/recovery activity to lost pornography traffic	Pornhub Insights, xHamster traffic releases, ad-impression data, search trends, internal/public audience segmentation, No Nut November or NoFap traffic effects.	Supports motive, knowledge, market impact, causation, and the claim that recovery was treated as a commercial threat rather than merely an academic disagreement.	FAC ¶¶ 82, 127-130, 179-191.
HIGH	Direct coordination evidence	Metadata, emails, referrals, shared files, synchronized posts, repeated distinctive phrasing, same images/links, or proof that named Aylo personnel supplied data, opposition research, or media contacts.	Addresses the defense that the complaint improperly lumps defendants together. It can particularize who did what, when, through which channel, and for whose benefit.	FAC ¶¶ 92-93, 132-134, 258-270, 474-480.
HIGH	Proof of data falsification or undisclosed conflicts in the Taylor & Francis paper	Dataset rows, coding errors, duplicate or misclassified posts, changed spreadsheets, contributor histories, OSF metadata, disclosed/undisclosed relationships, and notices sent to the publisher.	Supports falsity, knowledge/recklessness, academic dissemination, notice, republication, and potential common-plan allegations.	FAC ¶¶ 250-300.
HIGH	NoFap damages and lost-opportunity records	Google Analytics exports, Search Console, membership logs, donation data, sponsor or partner withdrawals, moderation costs, lost product plans, legal invoices, deplatforming communications, and contemporaneous business forecasts.	Directly supports business/property injury, causation, special damages, brand injury, and the non-speculative value of lost opportunities.	FAC ¶¶ 447-469.
MEDIUM-HIGH	Aylo/Pornhub statements acknowledging addiction, dysfunction, habituation, or recovery methods	Preserved versions of Pornhub's "Sexual Wellness Center," footer language, corporate blog posts, expert content hosted or promoted by Aylo, and changes made after criticism.	Supports knowledge and contradiction. It is strongest when the speaker, date, ownership, and later contrary representation are documented.	FAC ¶¶ 64-66, 91.
MEDIUM-HIGH	Republication-chain evidence	A timeline showing an originating statement or dataset, amplification by named defendants or industry accounts, adoption by journalists/academics, search ranking, and a measurable consequence.	Supports causation, scope, actual malice/recklessness arguments, coordinated dissemination, and damages.	FAC ¶¶ 175-191, 290-315, 347-405, 448-455.
MEDIUM	Evidence that recovery users were mined as data while their testimony was publicly discredited	Research protocols, scraped posts, market reports, academic datasets, industry-facing presentations, or audience analyses using recovery communities.	Supports knowledge, motive, category control, and the allegation that the same population was commercially/research-readable but publicly discredited. It must be tied to a defendant or collaborator to carry substantial legal weight.	FAC ¶¶ 255-280, 338-350.
MEDIUM	Child access, school-device exposure, and age-verification evidence	Device-access records, bypass instructions, child-audience metrics, school filtering failures, age-gate traffic effects, or statements that verification would "devastate traffic."	Supports motive, foreseeability, public-interest context, and regulatory stakes. It is not, by itself, proof that a defendant defamed or interfered with NoFap.	FAC ¶¶ 2, 15, 23, 127-130.

Priority	Evidence category	Best proof objects	Why it may matter	FAC refs.
LOW UNLESS LINKED	Broad institutional or philosophical evidence	General school-system failures, general pornography harms, structural models, predictions, or evidence about actors not named or connected to the alleged enterprise.	Useful as a theory map or discovery roadmap, but generally insufficient alone to prove a specific defendant's statement, intent, coordination, reliance, or damages.	Use only after identifying the defendant, act, date, channel, and claimed injury.

3. The Most Important Legal Boundary Right Now

The case is still in motion-to-dismiss briefing. That changes how outside evidence can be used immediately.

The public docket showed motion-to-dismiss briefing and sur-replies through June 12, 2026, without a publicly identified merits ruling in the sources reviewed. On a Rule 12(b)(6) motion, a court normally evaluates the pleading; if outside material is presented and not excluded, Rule 12(d) generally requires conversion to summary judgment. Therefore, new evidence may be most useful for:

- a permitted amendment or supplemental pleading;
- a request for judicial notice where legally appropriate;
- preservation letters and a targeted discovery plan;
- opposing factual assertions if the court converts a motion or later reaches summary judgment;
- damages proof, expert analysis, witness identification, settlement, and trial preparation.

Practical consequence: Evidence should be sent to plaintiffs' counsel promptly, but it should be organized as potential evidence, not represented as something the court can automatically consider during the pending Rule 12 stage.

4. What Would Directly Answer the Defendants' Pleading Attacks

Publicly available dismissal briefing attacks, among other things, defendant-grouping, failure to identify specific fraudulent communications, causation, non-speculative business injury, a RICO enterprise/pattern, and details of trademark use or consumer deception. The evidence package should therefore answer these questions:

Required answer	Evidence question
Who?	Which exact defendant, employee, academic, publisher, trade association, account, or intermediary acted?
What?	What exact statement, data manipulation, referral, advertisement, keyword page, pressure campaign, or communication occurred?
When and where?	Date, platform, URL, event, journal, email list, litigation, or meeting.
Connection?	What shows coordination, authorization, ratification, payment, referral, data supply, or shared purpose?
Money/property?	What traffic, membership, donation, contract, business opportunity, product, trademark value, or cost was affected?
Causation?	What before-and-after analytics, third-party communication, withdrawal, search result, or contemporaneous record links the act to the loss?
Authenticity?	Can the original file, metadata, archive capture, custodian, hash, or witness establish provenance?

5. Your Evidence: Best Likely Contribution

Your strongest contribution is not merely another account of pornography harm. It is the market-structure bridge between audience measurement, child reach, recovery testimony, academic reframing, and protection of traffic and legitimacy.

A. Market motive and return signals

Your work on Pornhub/Aylo audience analytics, “Insights,” search behavior, age-gate losses, reward-loop design, and recovery populations could help establish why NoFap would be economically threatening. The most valuable version is a dated record showing that a defendant measured the behavior, recognized the threat, and then acted against the recovery channel.

B. Contradictory representations

Your collected examples of market actors acknowledging habituation, sexual dysfunction, recovery, or the need to abstain may contradict later claims that recovery is fraudulent, purely moral, or inherently harmful. Preserve the exact corporate source and date.

C. Academic category control

Your evidence about research functioning as market research or liability management may help counsel identify discovery targets: datasets, funding, contributor histories, conflict disclosures, editorial communications, referrals, and promotional plans. The theory becomes evidence when attached to specific records.

D. Downstream adoption

Your K-12 and institutional materials may show how “misogyny,” “extremism,” or other frames migrated into professional or educational systems. That could support scope and damages if the adoption is traceable to the challenged publications or named defendants. Without traceability, it is contextual rather than case-dispositive.

E. Male recovery testimony as evidence

Your model treats male users’ accounts of conditioned demand, sexual dysfunction, and loss of control as injury evidence rather than ideological confession. That can help explain the importance and legitimacy of NoFap’s service, but counsel will still need authenticated declarations, analytics, or expert-supported aggregation rather than generalized anecdotes.

6. Evidence That Is Unlikely to Help Unless Converted

- A conclusion that the whole structure is fraudulent, without the underlying records.
- Claims about “schools,” “academia,” “the industry,” or “platforms” without naming the person/entity and act.
- Unarchived screenshots lacking date, URL, account identity, or surrounding context.
- Paraphrases where the original statement is available.
- Correlations between publication and traffic decline without a method, baseline, or alternative-cause analysis.
- Evidence concerning unrelated actors that does not show a common method, communication, or admissible pattern.
- Private or sensitive user material obtained without lawful authority or informed handling.

7. Recommended Counsel Handoff Format

Send a short index first. Do not begin with the full theory. Each proposed item should occupy one row:

Item	Date/source	Named actor	Exact fact proved	FAC paragraph/claim	Original preserved?	Confidentiality

Preservation rules

- Keep the original file untouched; work from a copy.
- Record the URL, access date/time, account name, page title, and surrounding context.
- Export native data where available instead of relying only on screenshots.
- Preserve metadata, archive captures, emails with headers, and any lawful chain-of-custody information.
- Identify how you obtained the item and whether access required an account, permission, or special method.
- Do not contact represented defendants, impersonate users, bypass access controls, or acquire private material unlawfully.

8. Morally and Philosophically

The complaint's central moral injury is the attempted destruction of the population that returns evidence of product harm.

NoFap's users are not merely consumers with opinions about pornography. In the pleaded theory, they are an organized return signal: people reporting loss of control, sexual dysfunction, relational injury, and attempts to exit. A market that measures this population for traffic, content, or research value while portraying its recovery channel as fraudulent, violent, or extremist converts injury evidence into a reputational offense. Your work is most useful when it documents that conversion as a sequence of controlled acts rather than only as a moral conclusion.

9. Final Assessment

You appear to possess potentially useful evidence categories for NoFap. The highest-value material is: (1) direct market measurement of NoFap/recovery as a traffic threat; (2) direct use of the NoFap mark or search term to divert users; (3) contradictory Aylo/Pornhub acknowledgments of addiction, dysfunction, or recovery; (4) direct coordination or metadata linking named defendants; (5) proof of academic data manipulation/conflicts; and (6) records that quantify NoFap's economic and access injury. Your school-system evidence is secondary unless it traces the defendants' challenged narrative into a concrete downstream decision or measurable harm.

Selected complaint reference map

Issue	Complaint references
Commercial motive / traffic / advertising	¶¶ 82, 89-91, 127-130, 179-191
Recovery legitimacy and contradictory industry statements	¶¶ 57-70, especially the repeated numbering around internal pp. 22-31; ¶ 91
Coordination and referrals	¶¶ 92-93, 123-134, 258-270, 474-480
Taylor & Francis paper and alleged data falsification	¶¶ 250-300
Downstream publication and narrative spread	¶¶ 301-405, 448-455
Moderation/deplatforming and user-access effects	¶¶ 421-423
Economic and reputational damages	¶¶ 447-469
Claims most directly implicated	Counts I-V, VIII-IX, XIV-XV; FAC internal pp. 174-199

Sources

First Amended Complaint, Rhodes and NoFap LLC v. Aylo Holdings S.A.R.L. et al., No. 2:25-cv-01956-MJH, ECF No. 9 (W.D. Pa. filed Dec. 30, 2025). | Public docket summary for the same action, last entries reviewed through June 12, 2026 (PacerMonitor/CourtListener public docket pages). | Federal Rules of Civil Procedure, Rules 12(d), 15, and 26, current rules page and official rules PDF, U.S. Courts.